

such, the presumption of receipt applies.

The Court also notes that defense counsel signed a Notice of Acknowledgement of Receipt regarding the First Amended Complaint on January 5, 2024. That Notice of Acknowledgment was filed on January 11, 2024. Service of summons via a Notice of Acknowledgement of Receipt is “deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender.” (Code Civ. Proc. § 415.30(c).) Defendant was properly served at that time and had actual knowledge of the summons and complaint. It is unclear why Defendant never responded to the FAC, nor why Plaintiff did not move to enter default.

In addition, Plaintiff’s counsel’s declaration indicates Defendant has also responded to written discovery. (Gill Decl. ¶ 5.) If a party makes a general appearance the court obtains jurisdiction over them. A “general appearance need not be ‘a formal, technical step or act...’ [citation]; rather the term may apply to various acts which, under the circumstances, are deemed to confer jurisdiction of the person.” (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1397.) “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (*Ibid.*)

Courts have noted that responding to discovery “is evidently predicate on the assumption that the court has jurisdiction over the answer party -- otherwise, there would be no need for the answers.” (*Chitwood v. County of Los Angeles* (1971) 14 Cal.App.3d 522, 527-28.) “[T]he only hypothesis upon which answers to [discovery] are prepared, filed and served is that the answering party is subject to the court’s jurisdiction.” (*Id.* at 528.) As such, responding to discovery – as Defendant has done here – has been deemed to be a general appearance imparting jurisdiction over that party. (*Ibid.*) “A general appearance by a party is equivalent to personal service of summons on such party.” (*Hamilton v. Asbestos Corp* (2000) 22 Cal.4th 1127, 1147.)

Summary and Conclusion

Defendant has already accepted service of a complaint in this matter when it accepted service of the FAC via the Notice of Acknowledgment. It has also made a general appearance by responding to discovery. In addition, Plaintiff has substantially complied with the service requirements for substitute service on Defendant. Accordingly, Defendant’s motion to quash is **denied**.

Defendant’s multiple efforts to complain of ineffective service—even after Notice of Acknowledgment, general appearance, and multiple different efforts by Plaintiff to serve—have resulted in the significant expenditure of judicial resources. Defendant’s unmeritorious arguments noted above have also wasted judicial resources. All of this follows prior judicial admonishment to behave more professionally, which Plaintiff has acknowledged and vows to take seriously. The Court expects counsel to engage in good faith in this litigation and will be prepared to take appropriate action if that does not occur.

6. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JAMES TAFELSKI FOR DEF
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

7. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE THOMAS J. KIRKHAM
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

8. 9:00 AM CASE NUMBER: C25-00245
CASE NAME: SORN MOEUN VS. HIEU BALL, M.D.
GOOD FAITH SETTLEMENT ON BEHALF OF DEFENDANT HIEU T. BALL, MD
FILED BY: BALL, M.D., HIEU T.

TENTATIVE RULING:

Defendant Hieu Ball's motion for a good faith settlement determination is **denied without prejudice**. Defendant may renew his motion with additional information on past and future medical expenses and other information addressing the Court's concerns.

Plaintiffs sued for medical malpractice, alleging that Sorn was injured during spinal surgery. Montha (Sorn's wife) brought a loss of consortium claim. Dr. Ball performed the spinal surgery at San Ramon Regional Medical Center in October 2023.

Ball filed this motion for a good faith settlement determination. Defendant San Ramon Regional Medical Center opposes the motion. San Ramon argues that Plaintiff's potential recovery is \$17 million and that San Ramon could potentially be liable for Ball's actions (although San Ramon disputes this theory).

The party claiming that a settlement is not in good faith under Code of Civil Procedure §877.6 has the burden of proof on that issue. (*Tech-Bilt, Inc. v. Woodward-Cycle & Associates* (1985) 38 Cal.3d 488, 499 ("Tech-Bilt"); *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261, 1264.) The party asserting that the settlement was not made in good faith must demonstrate that the settlement is "so far out of the ballpark in relation to [the *Tech-Bilt*] factors as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt, supra*, 38 Cal.3d at 499-500.) However, in order for the Court to make a factual determination that a settlement was made in good faith, the settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*City of Grand Terrace, supra*, 192 Cal.App.3d at 1263.)

The criteria for the determination of a good faith settlement were originally set out by the